

		Medibles' Demurrer to Plaintiffs' First Amended Complaint is taken OFF CALENDAR pursuant to the Notice of Withdrawal of Hearing on Defendants' eXp Realty of Southern California, Inc., Jason D. Crawford, Anita Cruz, and Michael Scott Mendibles' Demurrer to Plaintiffs' First Amended Complaint (ROA #165) filed August 17, 2026.
5	Amirmokri vs. American Family Connect Insurance Agency, Inc. 30-2025-01491402	<u>Motion to Substitute for Party</u> Defendant Carfax, Inc. is granted leave to file sur-reply papers in response to Brad A. Mokri's reply papers. Any sur-reply shall be filed and served on or before September 4, 2026, and any sur-reply shall not exceed 10 pages. Plaintiff Behad Amirmokri's and Brad A. Mokri's Motion to Continue Action and to Substitute Successor in Interest shall be taken under submission on September 7, 2026. <u>Pending Motion</u> Plaintiff Behad Amirmokri and Brad A. Mokri move that this action continue notwithstanding the death of Plaintiff Behzad Amirmokri and that Brad A. Mokri be substituted as plaintiff in place of the decedent. <u>Standard to Continue Action After Party's Death</u> Civil Procedure Code section 377.20 provides that "[e]xcept as otherwise provided by statute, a cause of action for or against a person is not lost by reason of the person's death, but survives subject to the applicable limitations period." (Code Civ. Proc., § 377.20, subd. (a).) A cause of action that survives the death of a plaintiff passes to "the decedent's successor in interest." (Code Civ. Proc., § 377.30.) "Decedent's successor-in-interest" means "the beneficiary of the decedent's estate or other successor in interest who succeeds to a cause of action or to a particular item of the property that is the subject of a cause of action." (Code Civ. Proc., § 377.11.)

		The Civil Procedure Code states that a motion may be made to allow a cause of action to be continued after the plaintiff's death: On motion after the death of a person who commenced an action or proceeding, the court shall allow a pending action or proceeding that does not abate to be continued by the decedent's personal representative or, if none, by the decedent's successor in interest. (Code Civ. Proc., § 377.31.) The Civil Procedure Code also requires that "[t]he person who seeks to commence an action or proceeding or to continue a pending action or proceeding as the decedent's successor in interest" must execute and file an affidavit or declaration that contains seven statements, including a statement that "[t]he affiant or declarant is the decedent's successor in interest (as defined in Section 377.11 of the California Code of Civil Procedure) and succeeds to the decedent's interest in the action or proceeding" and that "[n]o other person has a superior right . . . to be substituted for the decedent in the pending action or proceeding." (Code Civ. Proc., § 377.32, subd. (a).) The seven statements that must be included in the affidavit or declaration are: (1) The decedent's name. (2) The date and place of the decedent's death. (3) "No proceeding is now pending in California for administration of the decedent's estate." (4) If the decedent's estate was administered, a copy of the final order showing the distribution of the decedent's cause of action to the successor in interest. (5) Either of the following, as appropriate, with facts in support thereof: (A) "The affiant or declarant is the decedent's successor in interest (as defined in Section 377.11 of the California Code of Civil Procedure) and
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		succeeds to the decedent's interest in the action or proceeding." (B) "The affiant or declarant is authorized to act on behalf of the decedent's successor in interest (as defined in Section 377.11 of the California Code of Civil Procedure) with respect to the decedent's interest in the action or proceeding." (6) "No other person has a superior right to commence the action or proceeding or to be substituted for the decedent in the pending action or proceeding." (7) "The affiant or declarant affirms or declares under penalty of perjury under the laws of the State of California that the foregoing is true and correct." (Code Civ. Proc. § 377.32, subds. (a)(1)-(a)(7).) Brad A. Mokri submitted a declaration that included statements 1, 2, 3, 4, and 7. (See Decl. of Brad A. Mokri in Supp. of Mot. to Substitute Successor in Interest (Mokri Decl., ¶¶ 2-7.)) However, Defendant Carfax, Inc. (Defendant Carfax) contends that while Mokri's declaration includes statement 5, it does not include "facts in support thereof." (Code Civ. Proc. § 377.32, subds. (a)(5).) In addition, Defendant Carfax points out that Mokri's declaration includes only part of statement 6 – that "[n]o other person has asserted a superior right to continue this litigation or to act as successor in interest with respect to the claims asserted in this case." (Mokri Decl., ¶ 7.) However, Mokri's declaration does not state that no other person has a superior right "to be substituted for the decedent in the pending action or proceeding." (Code Civ. Proc. § 377.32, subds. (a)(6).) However, Mokri submitted a supplemental declaration that addresses these points. (See Supp. Decl. of Brad A. Mokri in Supp. of Mot. to Substitute Successor in Interest (Mokri Supp. Decl.).) In this supplemental declaration, Mokri provides relevant facts that establish that he is Plaintiff's sole successor in interest within the meaning Civil
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		Procedure Code sections 377.10, 3787.11, 377.30, and 377.22. (See <i>id.</i>, ¶¶ 4-7.) Mokri also states that “[n]o other person has a superior right to be substituted for Decedent in this pending action or proceeding.” (<i>Id.</i>, ¶ 8.) Mokri has thus addressed all the deficiencies in his original declaration and has now complied with all the requirements of Civil Procedure Code section 377.32(a). Defendant Carfax also argues that Mokri is Plaintiff’s counsel and that when Plaintiff passed away, Mokri did not have standing to bring this motion. However, in his reply papers, Mokri makes clear that he brings this motion in his individual capacity as Plaintiff’s Successor In Interest, and not as Plaintiff’s Counsel. (See Mokri Supp. Decl., ¶ 9 [“I am not seeking substitution by virtue of any authority I previously possessed as Decedent’s attorney. I seek substitution in my individual capacity as Decedent’s successor in interest based upon my succession to Decedent’s surviving causes of action.”]; Reply of Proposed Successor in Interest Brad A. Mokri in Supp. of Mot. to Substitute Brad A. Morki as Successor In Interest at p. 2:21-27 [“Mr. Mokri therefore submits this Reply in his individual capacity, in propria persona, as the proposed successor in interest to Decedent Behzad Amirmokri. To the extent the caption or signature block of the original Motion created ambiguity concerning the capacity in which substitution was sought, this Reply expressly clarifies that Mr. Mokri seeks substitution based upon his independent succession to Decedent’s surviving causes of action—not upon any continuing attorney-client authority following Decedent’s death.”].) Of course, courts do not consider evidence presented in a reply declaration except in extraordinary circumstances and where the other party has an opportunity to respond. (See <i>Jay v. Mahaffey</i> (2013) 218 Cal.App.4th 1522, 1537 [“The general rule of motion practice, which applies here, is that new evidence is not permitted with reply papers.”]; <i>Plenger v. Alza Corp.</i> (1992) 11 Cal.App.4th 349, 362, fn. 8 [court may consider new evidence presented in reply only in exceptional cases and only if opposing party is given opportunity to respond to new evidence].)
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		However, the court may consider new evidence on reply when submitted in rebuttal to points raised in the opposition papers. (<i>Karlsson v. Ford Motor Co.</i> (2006) 140 Cal.App.4th 1202, 1216.) Here, the supplemental declaration submitted by Mokri was in direct response to points raised by Defendant Carfax in its opposition papers and the court will consider them. However, the court will allow Defendant Carfax an opportunity to respond to the new evidence and shall decide the matter only after Defendant Carfax has had an opportunity to do so. Brad A. Mokri shall give notice of this ruling.
6	Robinson vs. Ortiz 30-2024-01438864	<u>Motion to Seal</u> Defendant Matias Salinas Ortiz's Motion to Seal is CONTINUED to November 17, 2026 at 9:00 a.m. in Department N15. Defendant Matias Salinas Ortiz is ORDERED to serve all motion papers upon all parties that have appeared in this case and upon any party that already has access to the Declaration of Matias Salinas Ortiz in Support of Opposition to Plaintiff's Motion to Strike. Defendant Matias Salinas Ortiz is ORDERED to file a proof of service showing that he has complied with the above order within 30 days of this ruling. The court ORDERS that the following be STRICKEN from the record: 1. Declaration of Matias Salinas Ortiz in Support of Opposition to Plaintiff's Motion to Strike (Conditionally Filed Under Seal), page 6 of ROA #149; and 2. Declaration of Matias Salinas Ortiz in Support of Opposition to Plaintiff's Motion to Strike and all attached exhibits, pages 7-66 of ROA #149. <u>Pending Motion</u> Defendant Matias Salinas Ortiz moves to seal the Declaration of Matias Salinas Ortiz in Support of